

M/s Ashoka Pulp & Paper Pvt. Ltd. v. Paschimanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 3 October 2017 · Writ-C No. 38533 of 2014 · **Writ dismissed; Clause 4.20 additional-security challenge fails.**

HEADNOTE

A writ challenging a demand of additional security under Clause 4.20 of the U.P. Electricity Supply Code, 2005 is dismissed where the same challenge has already been held to be without merit; any interim restraint on that demand stands vacated.

FACTUAL SUMMARY

The petitioner, an industrial consumer, challenged a 3 June 2014 notice of Paschimanchal Vidyut Vitran Nigam Ltd. demanding additional security under Clause 4.20 of the U.P. Electricity Supply Code, 2005. A 28 July 2014 order staying electricity duty was recalled as wrongly transcribed. A substituted 4 August 2014 order connected the petition with Writ Petition (C) No. 51844 of 2009 and restrained the additional-security demand. At the 3 October 2017 hearing, both sides accepted that the controversy had already been decided against the consumer.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.20

additional security

HOLDING

Following *M/s Dev Prayag Paper Mill (Pvt.) v. State of U.P.* (Writ-C No. 30898 of 2016, 21 March 2017), a challenge to Clause 4.20 of the U.P. Electricity Supply Code, 2005 as the basis for demanding additional security has no merit. The writ is dismissed and any interim order restraining that demand is vacated. ¶ 1

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>M/s Dev Prayag Paper Mill (Pvt.) v. State of U.P.</i> Writ-C No. 30898 of 2016 (21 March 2017)			1	Referred
<i>M/s Supreme Ceramics Ltd. v. Paschimanchal Vidyut Vitran Nigam Ltd.</i> Writ Petition No. 51844 of 2009 (order dated 7.10.2009)			substituted order 4.8.2014	Referred